Fairbanks Military Road, made by Executive Order No. 2259 of October 14, 1915, so far as such orders affect the above-described lands.

This order is subject to the condition that the Mineral Creek Road crossing the garrison site area shall not be closed unless other equivalent access to the areas served by that Road is provided.

The jurisdiction granted by this order shall cease at the expiration of the six months' period following the termination of the unlimited national emergency declared by Proclamation No. 2487 of May 27, 1941 (55 Stat. 1647). Thereupon, jurisdiction over the lands hereby reserved shall be vested in the Department of the Interior, and any other Department or agency of the Federal Government according to their respective interests then of record. The lands, however, shall remain withdrawn from appropriation as herein provided until otherwise ordered.

This order is confidential and shall not be filed in the Division of the Federal Register, or published in the FEDERAL REGISTER, or be given other publicity, until publication thereof has been expressly authorized by or at the direction of the Secretary of War.

NOTE: Confidential status released by letter of the Secretary of War dated June 27, 1946.

ABE FORTAS,
Acting Secretary of the Interior.

AUGUST 23, 1943.

[F. R. Doc. 46–13344; Filed, July 31, 1946; 4:07 p. m.]

[Public Land Order 169]

ALASKA

WITHDRAWING PUBLIC LANDS FOR USE OF THE WAR DEPARTMENT FOR MILITARY PURPOSES

By virtue of the authority vested in the President by section 1 of the act of June 4, 1897, 30 Stat. 11, 36 (U.S.C., title 16, sec. 473), and otherwise, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the public lands within the following-described area are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the War Department for military purposes:

Beginning at the point of intersection of latitude 59°34' north, and 139°30' west.

From the initial point South, along the meridian to latitude 59°25' N.;

West, along the parallel of latitude to the 5 fathom line of the Gulf of Alaska;

Northwesterly, with the 5 fathom line around Ocean Cape to longitude 139°50' W., near Point Carrew on Monti Bay;

North, along the meridian to latitude 59°36' N.;

East, along the parallel of latitude to longitude 139°44' W.;

South, along the meridian to latitude 59°34' N.;

East, along the parallel of latitude to the point of beginning.

The area described aggregates 62,260 acres, more or less.

This order shall be subject to (1) the withdrawal for lighthouse purposes made by Executive Order No. 3406 of February 13, 1921, so far as such order affects lands at Point Carrew, Item No. 102, and at Ocean Cape, Item No. 103, and (2) the withdrawal for naval purposes made by Executive Order No. 5214 of October 30, 1929, so far as such order affects any of the lands in the above-described area.

This order shall take precedence over but not modify Proclamation No. 846 of February 16, 1909 (35 Stat. 2226), enlarging the Tongass National Forest, so far as such Proclamation, as modified, affects any of the lands in the above-described area.

This order is subject to the following conditions:

1. Fishing by civilians will be permitted within the area hereby reserved, but such civilians, resident natives excepted, must in person secure a permit to fish in designated areas and comply with the regulations of the Fish and Wildlife Service, Department of the Interior. The natives shall be allowed to continue to fish in the streams and coastal waters, hunt and trap in the area on the basis of permits to be issued by the Indian service teacher and countersigned by the commanding officer or his authorized subordinate.

2. The Commanding Officer will be instructed to issue orders to the military personnel and require that they comply with the Fish and Wildlife Service regulations.

3. The Fish and Wildlife Service shall have the right to construct and operate weirs and other devices in the watershed in order to facilitate continued scientific investigation of the salmon and other food fishes, so far as the exercise of such right shall not conflict with combat requirements.

4. The Fish and Wildlife Service officials will be permitted to enter the military area to enforce conservation laws in accordance with the Fish and Wildlife Service regulations. Infraction of such regulations by the military personnel will be reported to the military authorities for appropriate action.

5. No dams or barricades will be erected in the river or watershed except when dictated by military necessity. This restriction does not apply to barricades customarily erected by resident natives in the pursuit of their customary fishing.

6. Construction operations by the military authorities shall be so conducted as to prevent erosion, silting, or scouring of the salmon spawning streams and lakes in the area.

7. A protective belt of at least one hundred yards shall be established on the banks of all rivers, lakes, and streams in the area. No construction shall be permitted in this belt, and the belt shall be allowed to remain in its present natural condition except when military necessity requires the use of the protective strip, *Provided*, That the customary use of the protective strip by resident natives shall not be interfered with.

8. A liaison officer from the Fish and Wildlife Service shall be assigned to the military headquarters to advise and consult with the Commanding Officer with a view to protecting the valuable fishery resources. The Indian Service teacher will serve as liaison officer to advise and consult with the Commanding Officer with a view to protecting the rights and interests of the native population, to insure the cooperation of the natives with the military and to safeguard the self-governing organization of the natives.

9. The salmon cannery at Yakutat village shall be continued in operation to produce canned salmon, and a railroad over which fresh salmon are hauled to the cannery shall be continued available to render this service, subject to military necessity.

10. The sale of liquor shall be prohibited within and about the native villages within the area.

11. The control over certain radio facilities and an access road thereto, heretofore established under certain permits and licenses, is reserved to the Civil Aeronautics Administration, Department of Commerce.

12. The natives of Yakutat village shall not be disturbed unnecessarily in the continued occupation of the village and their camp sites. Ingress and egress of the natives to and from the village and the camp sites shall be granted the natives through permits issued by the Indian Service teacher and countersigned by the Commanding Officer or his authorized subordinate.

The jurisdiction granted by this order shall cease at the expiration of the six months' period following the termination of the unlimited national emergency declared by Proclamation No. 2487 of May 27, 1941 (55 Stat. 1647). Thereupon, jurisdiction over the lands hereby reserved shall be vested in the Department of the Interior, and any other Department or agency of the Federal Government according to their respective interests then of record. The lands, however, shall remain withdrawn from appropriation as herein provided until otherwise ordered.

This order is confidential and shall not filed in the Division of the Federal Register, or published in the FEDERAL REGISTER, or be given other publicity, until publication thereof has been expressly authorized by or at the direction of the Secretary of War.

NOTE: Confidential status released by letter of the Secretary of War dated June 27, 1946.

ABE FORTAS,
Acting Secretary of the Interior.

SEPTEMBER 21, 1943.

[F. R. Doc. 46–13345; Filed, July 31, 1946; 4:08 p. m.]

[Public Land Order 177]

ALASKA

WITHDRAWING PUBLIC LANDS FOR USE OF THE WAR DEPARTMENT FOR MILITARY PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the public lands within the following-described areas are hereby withdrawn from